

Instructor: Date:

Learner: Regional Branch:

Program: Center:

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Let's Start!

What is a source code escrow arrangement?



Learning Outcome:

Understand information about people's backgrounds in spoken or written documents.
Create a report on fulfilment of terms of reference, based on the participation of each agent in regards to the satisfaction of IT goods contracted and received, according to rules and protocols of the organization.

Ask your partner:

- Why do you think it is important to have customers' support in a software license?
- How do you make sure you receive regular software updates and technical support after getting licensed software?

Can Do Statements:

- I can understand written information about source code escrow arrangements.
- I can identify the fundamental elements included in a source code escrow arrangement.
- I can write a simple text to recommend whether a source code escrow arrangement is necessary.





Let's Explore!

The following is the general description of what source code escrow arrangements are.



Instructions: Read the text below.

A source code escrow arrangement is often included in software license agreements so the customer can access and use source code for the licensed software in case any event occurs. Events, also known as "release events" occur because of the software vendor's bankruptcy or its breach of its contractual obligation to procure software maintenance services.

The software is usually written in a language that only well-versed programmers can understand and modify. The final version of the computer software is "source code" and is gathered into machine language format known as "object code". Object code is difficult to be understood and modified. Therefore, programmers need to have access to the source code. Object code is not as easy to modify as source code.

Object code distribution happens when software vendors give customers software in this format. It helps protect valuable intellectual property, and, since they are not as good at working with source code as programmers, customers are prone to purchase software maintenance and other services from the vendor. However, the customer sometimes may not need the vendor's help to get required software maintenance services as it may not be as convenient as established in the software license agreement. In such a case the customer may ask for a supplemental remedy supplied through a source code escrow arrangement.

The need for a source code escrow arrangement will depend on:

- how important the licensed software is for the customer and the cost and time it would take them to replace it,
- how likely it is for the vendor to fail at providing software maintenance services,
- how good is the deposited source code and related materials, and
- how capable the customer is to use the source code to maintain the licensed software.





Let's Practice!

What is the source code escrow arrangement?

Instructions: Read the text again. Circle the correct word to complete the sentence.

A source code escrow arrangement (are / be / is) often included in software license agreements so the customer can (approach / egress / access) and (waste / use / save) source code for the licensed software in case any event (show / occurs / stop). Events, also known as "release events" (make / take / exclude) place because of the software vendor's bankruptcy or its breach of its contractual obligation to procure software maintenance services.



Let's Practice!

What does the source code escrow arrangement involve?

Instructions: Select the correct answer to complete the sentences.

1. Software written language is not _____. Only well-versed programmers can understand it and modify it.
 - a. as simple to understand as you think
 - b. as easy to understand as you think
 - c. as complicated to understand as you think
 - d. as vague to understand as you think
2. The final version of the computer software is "source code" and is gathered into machine language format known as "object code". Then object code _____ everybody says.
 - a. is as easy to be understood as
 - b. is not as unclear to be understood as
 - c. is not as easy to be understood as
 - d. is not as ambiguous to be understood as
3. Programmers need to have access to the source code. Object code is _____ source code.
 - a. not as clear to modify as
 - b. not as demanding to modify as
 - c. not as mere to modify as
 - d. not as easy to modify as
4. Customers are _____ programmers, so they are prone to purchase software maintenance and other services from the vendor.
 - a. not as nice at working with source code as
 - b. not as good at working with source code as
 - c. as good at working with source code as
 - d. not as weak at working with source code as
5. However, the customer sometimes may not need the vendor's help to get required software maintenance services _____ in the software license agreement.
 - a. as it may not be as convenient as established
 - b. as it may be as convenient as established
 - c. as it may not be as unhelpful as established
 - d. as it may not be as bad as established.



Extension Activity

Promoting the Source Code Escrow Arrangement

Instructions: Complete the following steps. Fill in the Self-Assessment.

- Look for information about source code escrow arrangement.
- Describe the importance of it and the fundamental elements.
- Write an advertising article talking about its benefits.
- Share the article with you classmates.

Self-Assessment

	Yes	No
1. I look for information about the source code escrow arrangement.	☐	☐
2. I describe its importance.	☐	☐
3. I express information in an advertising article.	☐	☐
4. I share information with my classmates.	☐	☐



Target Words

- **escrow** (noun): a written agreement deposited with a third person who is expected to give it back once a specific condition is fulfilled.
e.g. A source code escrow arrangement is often included in software license agreements so the customer can access and use source code for the licensed software in case any event occur.
- **intellectual property** (noun) creations of the mind such as inventions, literary works, or artistic work protected by law and used in commerce.
e.g. It helps protect valuable intellectual property, and, since they are not as good at working with source code as programmers, customers are prone to purchase software maintenance and other services from the vendor.
- **object code** (noun): sequence of instructions in computer language which corresponds to the phase previous to machine language.
e.g. Object code is difficult to be understood and modify, therefore programmers need to have access to the source code.
- **prone** (adjective) inclined; having a tendency towards something.
e.g. It helps protect valuable intellectual property, and, since they are not as good at working with source code as programmers, customers are prone to purchase software maintenance and other services from the vendor.
- **source code** (noun) computer instructions using human-readable computer language in text form.
e.g. The final version of the computer software is "source code" and is gathered into machine language format known as "object code".
- **well-versed (adjective)** skilled.
e.g. Software is usually written in a language that only well-versed programmers can understand and modify.



Learning Points

Make Comparison with Not as... as

When we want to say that two things are not equal, we use the form "as ...as". The structure is the following:

not + as + adjective + as

When using this structure, we establish that the first thing mentioned is "less" than the second thing.

Example:

Source code **isn't as easy as** other programming languages.

This structure is also used to compare actions.

Example:

That source code escrow arrangement **didn't work as well as** we expected.

Examples

- *Object code is not as easy to modify as source code.*
- *It helps protect valuable intellectual property, and, since they are not as good at working with source code as programmers, customers are prone to purchase software maintenance and other services from the vendor.*
- *However, the customer sometimes may not need the vendor's help to get required software maintenance services as it may not be as convenient as established in the software license agreement.*

Understanding the Concept of Source Code Escrow

Source code escrow happens when the sourced code of software is deposited with a third party escrow agent. This escrow is demanded by the licensee to ensure software maintenance and technical support.

The licensed software code is provided to the licensee if the vendor files for bankruptcy or is not able to maintain or update the software as established in the software license agreement.

Keeping software updated is essential for most companies and they usually would like to make sure that software maintenance continues even if the vendor is not capable to do so. The best way to achieve this is by accessing the software source code; however, as this is usually protected as intellectual property, source code escrow makes sure the licensee obtains access to the source code only when the vendor fails to provide software maintenance.

A source code escrow agreement usually:

- specifies the subject and scope of the escrow.
- ensures the vendor puts updated versions of the software.
- specifies the conditions under which the source code may be released to the licensee.
- specifies services provided by the escrow agent besides the custody of the source code.

